



SERVICE AGREEMENT

This Service Agreement ("Agreement") is a legal and binding contract between **TekVian Solutions, LLC** (TekVian, We) an Arizona Limited Liability Company and you (Customer, You), the Customer which is the signatory or on behalf of the legal entity that accepts this agreement.

A. **Scope of Services:**

1. This agreement governs all services that We perform or facilitate for You, as well as any licenses, or products that TekVian sell or re-sell to Customer.
2. The Services are not described in this Agreement; instead, We will provide You with a quote, proposal, service order or similar electronic document describing them (Services Proposal). By accepting the Services Proposal, You also agree to the terms of this Agreement. If You do not agree to the terms of this Agreement, then You should not accept the Services Proposal.

B. **Responsibilities:** TekVian agrees to:

1. Services will be performed on a schedule, and in a prioritized manner, as We deem reasonable and necessary. Start dates may vary or deviate from the dates We state to You depending on the Service being provided.
2. Services delivered by TekVian may include a mix of on-site, remote, and phone support.
3. If We consider that a hardware or software issue requires vendor or OEM support, We may contact the vendor or OEM on your behalf and invoice You for all fees and costs involved in the process. We will obtain Customer authorization before incurring such expenses unless the circumstances require us otherwise.

B. **Responsibilities of Customer:** Customer hereby agrees and is responsible for compensating Provider fees, costs, and expenses charged by TekVian for the services described in each Service Proposal. You are responsible for sales taxes and other taxes, or governmental fees associated with the services. You are also responsible for all freight, insurance, and related taxes.

1. For on-site services of less than 1 hour, a minimum of one hour will be charged. For remote services a minimum of 15 minutes will be charged. Services will be charged by 15 minutes increments after the first hour. Travel time for the consultant may be assessed at the consultant's normal hourly rate. Other travel cost for long distance travel will be negotiated with Customer as needed and applicable.
2. Customer will be invoiced and provided with service reports for all services provided. Payment terms for invoices are due on receipt. If payment is not received according to the terms of the agreement, TekVian reserves the right to suspend all services without further notice.
3. TekVian reserves the right to modify payment terms and rates upon 30 days written notice to designated Customer representative.
4. Fees that remain unpaid for more than thirty (30) days after the date on the applicable invoice, will be subject to interest on the unpaid amounts until and including the date payment is received, at the lower of either 5% per month or the maximum allowable rate of interest

permitted by applicable law. We reserve the right, but not the obligation, to suspend part of all of the Services without prior notice to You in the event that payments are not timely received by us.

5. Each term of each Service will renew automatically for additional terms equal in length to the initial term, unless Customer notifies TekVian in writing not less than thirty (30) days prior to the end of the initial term that it wishes to terminate such Service.

C. Access: You hereby grant to TekVian and our designated third party vendors, the right to monitor, diagnose, manipulate, communicate with, retrieve information from, and otherwise access any computer network, computer system, peripheral or device acquired, installed, maintained, monitored or operated by TekVian ("Environment") solely as necessary to enable us or our vendors to provide the Services.

D. Additional Terms, Third Party Services:

1. Portion of the Services may require You to accept the terms of one or more third party end user license agreements, third party customer agreements and/or third-party subscription agreements ("End User Agreements"). If the acceptance of an End User Agreement is required to provide Services to You, then You hereby grant TekVian permission to accept applicable agreements on your behalf. You agree to be bound by the terms of such End User Agreements.
2. Portions of the Services may be acquired from, resold from, and/or rely upon the services of, third party vendors, manufacturers, or providers ("Third Party Provider"). Third Party Providers may provide services such as data hosting services, help desk services, malware detection, domain registration services and data backup/recovery services ("Third Party Service"). You understand and agree that Third Party Providers are not our contractors, suppliers, We will not be responsible, and will be held harmless by You, for any failure of any Third Party Service as well as the failure of any Third Party Provider to provide such services to TekVian or to You.
3. The Services may require TekVian to purchase certain "per seat" licenses from Microsoft ("NCE Licenses") to provide You with one or more of the following applications: Microsoft 365, Windows 365, Dynamics 365, and Microsoft Power Platform ("NCE Application"). As per Microsoft's requirements, NCE licenses cannot be canceled once they are purchased and cannot be transferred to any other customer. If We purchase NCE licenses on your behalf, then those licenses may require a definite term, such as one (1) or three (3) years. For that reason, You understand and agree that regardless of the reason for termination of the Services, You are required to pay for all applicable NCE Licenses in full for the entire term of those licenses. Provided that You have paid for the NCE Licenses in full, You will be permitted to use the applicable NCE Applications until the expiration of their license terms, even if You terminate services with TekVian.

E. General Provisions:

1. TekVian will not refund any payments for services rendered to Customer.

F. Confidentiality, Nondisclosure, Nonsolicitation and Limitation of Liability

1. TekVian and Customer mutually agree not to disclose confidential or proprietary information that has been identified as such by either party.

2. TekVian shall not be liable to Customer for any loss, damages, claims or costs whatsoever including any consequential, indirect, or incidental damages, any lost profits, any damages resulting from business interruption, personal injury or failure to meet any duty of care, or claims by a third party except in the case of TekVian gross negligence or intentional misconduct.

G. Miscellaneous:

1. All prior negotiations and agreements between the parties hereto relating to the subject matter hereof are superseded by this Agreement and as of the date hereof there are no representations, warranties, understandings or agreements, whether written or oral, expressed or implied, other than those specifically set forth herein.
2. This Agreement may only be amended by a written agreement signed by all parties hereto. Each of the parties agrees to cooperate fully in the effectuation of the transactions contemplated hereby and to execute any and all additional documents or take such additional action as shall be reasonably necessary or appropriate for such purpose.
3. This Agreement shall be governed by and construed in accordance with the laws of the State of Arizona.
4. The parties to this Agreement shall use their best efforts to promptly resolve any dispute, controversy or claim arising out of or relating to this Agreement by meeting and negotiating in good faith with one another to assist in facilitating an amicable resolution of the dispute(s). All disputes which cannot first be resolved through good faith negotiations, and which are raised in writing to the other within nine (9) months of the date such claim arose, shall first be submitted to mediation, and a neutral mediator selected by the parties shall attempt to resolve the dispute. If not successfully mediated, the dispute shall be resolved by an arbitrator appointed by the parties who shall conduct an arbitration proceeding in Nogales, Arizona according to the commercial arbitration rules of the American Arbitration Association ("AAA"). There shall be a single arbitrator, who shall be a retired or former state or federal judge, to be selected by mutual agreement of the parties. The parties need not select the arbitrator from a roster supplied by the AAA, nor are the parties required to have the AAA administer the arbitration for a fee. Each party shall pay the fees of its own attorney(s), and its own legal expenses and costs. The cost of the arbitrator shall be borne equally by both parties and paid in accordance with any agreement reached with the arbitrator. The decision of the arbitrator shall be binding upon the parties hereto for all purposes, and judgment to enforce any such binding decision may be entered in Superior Court, Santa Cruz County, Arizona (and for this purpose each party hereby expressly and irrevocably consents to the jurisdiction of said court). At the request of either party, arbitration proceedings shall be conducted in the utmost secrecy. In such cases all documents, testimony and records shall be received, heard and maintained by the arbitrator in secrecy, available for inspection only by either party and their attorneys and experts who shall agree, in advance and in writing, to receive all such information in secrecy. In all other respects, the arbitration shall be conducted pursuant to the Uniform Arbitration Act as adopted in the State of Arizona and the then-existing rules and regulations of the American Arbitration Association governing commercial transactions to the extent such rules and regulations are not inconsistent with such Act or this Agreement.
5. Upon termination of this Agreement any labor or other expenses incurred by TekVian shall be paid by Customer in advance. Either party may terminate this Agreement at any time by providing at least three (3) months prior written notice to the other party. Customer acknowledges and agrees that Customer is responsible to pay in full all sums owed.

6. Customer (and any of its subsidiaries, related companies, agents and employees), agree that they shall not, during the term of this Agreement and for a period of 24 months following the termination of this Agreement, either directly or indirectly for themselves or for any other person or company, call upon, solicit, divert or take away any employees of TekVian or accept business from any employees of TekVian.